

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 6/24/26 TIME: 1:30 P.M. DEPT: H CASE NO: CIV2200618

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: A. ANDRES

PLAINTIFFS: LILY FILMS, INC., ET AL.

vs.

DEFENDANTS: DATASAFE, INC., ET AL.

NATURE OF PROCEEDINGS: MOTION – LEAVE TO AUGMENT EXPERT WITNESS
DESIGNATION

RULING

Plaintiffs filed a motion for leave to augment their witness designation. A notice of the motion was served on Defendant and no opposition was filed. A failure to oppose a motion may be deemed a consent to the granting of the motion. (Cal. Rules of Court, rule 8.54, subd. (c).) Failure to oppose a motion may also lead to the presumption that [plaintiff] has no meritorious arguments. (See *Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal. App. 3d 481, 489, disapproved of by *Garcia v. McCutchen* (1997) 16 Cal.4th 469, on other grounds.)

Plaintiff's motion is, therefore, granted.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

The Zoom appearance information for June, 2026 is as follows:

<https://marin-courts-ca-gov.zoomgov.com/j/1615487764?pwd=Ob4B5J7LLKcpnkxzJjiEOSHNgEGafG.1>

Meeting ID: 161 548 7764

Passcode: 502070

If you are unable to join by video, you may join by telephone by calling (669) 254-5252 and using the above-provided passcode. Zoom appearance information may also be found on the Court's website: <https://www.marin.courts.ca.gov>

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 6/24/26 TIME: 1:30 P.M. DEPT: H CASE NO: CIV2300652

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: A. ANDRES

PETITIONER: YES IN MY BACKYARD

vs.

DEFENDANT: CITY OF SAUSALITO

NATURE OF PROCEEDINGS: MOTION - ATTORNEY'S FEES

RULING

On March 30, 2026, Petitioner filed an appeal of the judgment. The court shall, therefore, stay Defendant's motion for attorney's fees until the appeal is resolved.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

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